

	30-2025-01516849-CU-CR-CJC	
6	Doe vs. Orange County 30-2025-01530494-CU-PO-CJC	Demurrer to Complaint Defendant, County of Orange’s demurrer to complaint is SUSTAINED with 10 days leave to amend. According to defendant’s counsel, during the statutorily-required meet and confer process, plaintiff’s counsel agreed to file a first amended complaint. Although not raised directly by defendant, the court finds the complaint uncertain and lacking in necessary detail. Plaintiff is ORDERED to file a red-lined and clean version of the first amended complaint. Clerk to give notice.
7	Nieto vs. Aaron Thomas Company 30-2025-01466779-CU-WT-CJC	Demurrer to Complaint Off calendar – First Amended Complaint filed.
8	Garcia vs. Providence St. Jude Medical Center 30-2025-01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant Providence St. Jude Medical Center dba St. Jude Hospital’s demurrer to first amended complaint is SUSTAINED without leave to amend in part and SUSTAINED with 10 days leave to amend in part. <u>Third cause of action for negligent infliction of emotional distress – SUSTAINED without leave to amend</u> The third cause of action for negligent infliction of emotional distress is not an independent tort. Since it is based on the same allegations as the first and second causes of action for professional negligence, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int’l</i> (1985) 166 Cal.App.3d 1123, 1136.) <u>Fourth cause of action for fraudulent concealment – SUSTAINED with 10 days leave to amend</u> Plaintiffs’ fraud claim fails because Plaintiffs have not alleged specific facts indicating intentional concealment, knowledge of falsity, an intent to deceive by Defendant, reliance and causation. Plaintiffs provide no specific facts